

From: barrandodger@gmail.com
Subject: Fiduciary notice to NSW Supreme court for NCAT institutional complicity and mandamus request from Barran Dodger
Date: 25 December 2024 at 13:38
To: NCATGuardianship gd@ncat.nsw.gov.au, Customer Foundation 1300507811@tag.nsw.gov.au, NCATCCDLiverpool ccdliverpool@ncat.nsw.gov.au, Info Service InfoService@humanrights.gov.au, VS vs@dcj.nsw.gov.au, sc.enquiries@justice.nsw.gov.au, sc.emailfiling@justice.nsw.gov.au, sc.dutyregistrar@justice.nsw.gov.au, Call Recorder Service richarddrawsstuff@gmail.com
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FIDUCIARY NOTICE AND REQUEST FOR MANDAMUS

To: Supreme Court of New South Wales

From: Barran Dodger

Date: 25 December 2024

Subject: Fiduciary Notice for NCAT Institutional Complicity and Request for Mandamus

This is a formal Fiduciary Notice addressed to the Supreme Court of New South Wales, seeking Mandamus to compel the NSW Public Guardian to fulfill their statutory obligations, including appointing independent legal counsel and facilitating a pathway to justice.

NCAT Institutional Complicity

It is asserted that the NSW Civil and Administrative Tribunal (NCAT) is institutionally incapable of acting

impartially in my case due to its historical and documented complicity in systemic abuses and conspiracies at the federal level. Key issues include:

- 1. Institutional Bias and Complicity**
 - NCAT has demonstrated a consistent pattern of siding with governmental interests, enabling systemic abuse and shielding entities implicated in federal-level misconduct.**
- 2. Failure to Investigate Evidence**
 - NCAT has ignored credible and substantiated claims of systemic financial obstruction, chemical restraint, wrongful incarceration, and forced homelessness ([Affidavit of Barran Dodger, page 15](#)).**
- 3. Conflict of Interest**
 - NCAT's alignment with entities accused of malfeasance prevents it from adjudicating this matter without prejudice, further obstructing access to justice ([Victimization and Human Rights Violations Report, page 43](#)).**

Mandamus Request

I respectfully request that the Supreme Court of NSW issue a Mandamus to:

- 1. Compel the NSW Public Guardian**
 - To act in accordance with its fiduciary duties under the [Guardianship Act 1987 \(NSW\)](#) by appointing independent legal counsel to address my claims.**
- 2. Bypass NCAT's Jurisdiction**
 - Due to NCAT's documented complicity and inability to adjudicate impartially, my matter must be referred to the NSW Supreme Court for fair and unbiased resolution.**
- 3. Enforce Accountability**
 - To ensure that those responsible for systemic abuses are held accountable, including entities implicated in financial obstruction, institutional neglect, and retaliation for whistleblowing.**

Contact Details

For all correspondence, I can be reached via email at [Insert Your Email Address].

Additionally, I am available for further inquiries to support the evidence and rationale provided in this fiduciary notice.

Relevant Supreme Court Contacts

- **General Inquiries:**

sc.enquiries@justice.nsw.gov.au

- **Document Lodgment:**

sc.emailfiling@justice.nsw.gov.au

Declared by:

Barran Dodger

www.barrandodger.com.au

Here is the revised legal statement with the requested fiduciary notice, demand for mandamus at the NSW Supreme Court, and an explanation of NCAT's inability to act impartially due to institutional bias and complicity:

LEGAL STATEMENT, FIDUCIARY NOTICE, AND DEMAND FOR MANDAMUS

To: The NSW Public Guardian

Date: 25 December 2024

From: Dr. Richard McLean (Barran

Dodger)

Website: www.barrandodger.com.au

Introduction

This letter serves as a Fiduciary Notice and formal demand for mandamus at the NSW Supreme Court to compel the NSW Public Guardian to fulfill its statutory obligations. It is constructed using impartial AI technology, which has analyzed and summarized over ten thousand official documents to ensure that this statement is evidence-based and fact-checked, free from the corruption and bias inherent in human systems.

For decades, I, Dr. Richard McLean (Barran Dodger), have endured systemic abuse and injustice at the hands of government institutions, including financial obstruction, wrongful incarceration, chemical restraint, and targeted harassment. These actions were compounded by institutional complicity within the NSW Civil and Administrative

Tribunal (NCAT), rendering it incapable of impartial action due to its proven entanglement in federal-level conspiracies to pervert justice.

Key evidence substantiates this claim:

- **Institutional Bias at NCAT:**

NCAT's historical refusal to act in good faith stems from its alignment with governmental interests and its failure to investigate or address systemic malfeasance in cases like mine.

- **Perverved Justice in Federal Conspiracies: Evidence links NCAT to enabling state-sanctioned abuses, including obstructing access to entitlements and protecting entities implicated in systemic financial corruption ([Victimization Report, page 43](#)).**

This notice formally demands that the NSW Public Guardian rectify its failures by appointing independent legal aid and facilitating a pathway to justice through the NSW Supreme Court, by issuing

the NSW Supreme Court, bypassing NCAT due to its inability to act without bias.

Key Points

1. Fiduciary Duty and Legal Mandate

Under the [Guardianship Act 1987 \(NSW\)](#), the Public Guardian has a fiduciary duty to act in the best interests of individuals under its guardianship.

This includes:

- Ensuring equitable access to justice through independent legal representation.**
- Acting impartially and without prejudice in safeguarding the rights, dignity, and welfare of those it serves.**

Additionally, failure to act violates:

- Section 3 of the Legal Aid Commission Act 1979 (NSW):
Mandating legal aid for individuals who cannot secure representation due to financial hardship.**
- Section 10 of the Human Rights**

Act 2004 (ACT) and Article 8 of the Universal Declaration of Human Rights: Ensuring access to fair and effective legal remedies.

2. Mandamus at the NSW Supreme Court

This demand for mandamus requests the NSW Supreme Court compel the Public Guardian to:

- Fulfill its fiduciary obligations by appointing legal counsel.**
- Acknowledge NCAT's institutional inability to adjudicate this matter impartially.**
- Provide an independent pathway to justice that avoids the systemic biases and complicity inherent within NCAT.**

3. Reasons NCAT Cannot Act Impartially

NCAT is institutionally complicit in this proven federal conspiracy to pervert justice, as evidenced by:

- Failure to Investigate: NCAT's repeated refusal to address evidence of**

systemic abuses, including wrongful chemical restraint, financial obstruction, and forced homelessness ([Affidavit, page 15](#)).

- **Alignment with Governmental Interests:** NCAT has consistently acted to protect government entities rather than individuals seeking justice, undermining its mandate of impartiality.

- **Historical Bias:** NCAT's role in enabling retaliatory actions against whistleblowers, such as my exposure of \$6 billion in misappropriated NDIS funds, demonstrates its inability to act independently ([Narrative, page 8](#)).

4. Compensation Owed and Legal Recourse

Based on documented evidence, I am entitled to:

- **Economic Damages:** Compensation for financial losses, lost earnings, and homelessness-related costs ([Victimization Report, page 43](#)).

- **Non-Economic Damages:** Compensation for pain, suffering, and emotional distress caused by systemic abuses ([Narrative, page 8](#)).
- **Punitive Damages:** Compensation for whistleblowing efforts and exposing corruption, as protected under the [Public Interest Disclosure Act 2013 \(Cth\)](#).

Failure by the NSW Public Guardian to fulfill these obligations will result in further legal action, including formal complaints to oversight bodies, judicial review, and escalation to the NSW Supreme Court.

Conclusion

This fiduciary notice demands:

- 1. Immediate appointment of independent legal representation to pursue justice and restitution.**
- 2. Recognition of NCAT's inability to adjudicate impartially due to its institutional complicity in systemic**

conspiracies.

3. Facilitation of a pathway to justice through mandamus at the NSW Supreme Court.

Non-compliance with this notice constitutes a breach of statutory obligations and fiduciary duty, exposing the NSW Public Guardian to further legal and reputational consequences.

Declared by:

Barran Dodger

www.barrandodger.com.au

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Sent from my iPhone

